



CHAPTER cxxii.

An Act to confirm a Provisional Order under the Land Drainage Acts 1861 and 1918 relating to an area drained by the River Ouse and its tributaries. A.D. 1920.

[4th August 1920]

WHEREAS the Ministry of Agriculture and Fisheries made the Provisional Order set forth in the schedule hereto under the provisions of the Land Drainage Acts 1861 and 1918:

24 & 25 Vict.
c. 133.
8 & 9 Geo. 5.
c. 17.

And whereas the Order was duly published:

And whereas memorials were duly presented by persons and bodies affected by the Order and having such interest as is prescribed as being sufficient for the purpose praying that the Order shall not become law without confirmation by Parliament and all such memorials have not been withdrawn:

And whereas it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order as amended and set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Land Drainage (Ouse) Provisional Order Confirmation Act 1920. Short title.

A.D. 1920.

SCHEDULE.

Ouse Provisional Order.

WHEREAS petitions have been presented to the Ministry of Agriculture and Fisheries (hereinafter called "the Ministry") by the councils of the administrative counties of Norfolk the Isle of Ely Cambridge Huntingdon Bedford Buckingham and Northampton for the constitution as a separate drainage district for the purposes of Part II. of the Land Drainage Act 1861 of such area drained by the River Ouse and its tributaries as appears to the Ministry to be expedient:

And whereas in the opinion of the Ministry it is expedient that the area shown on the map sealed by the Ministry in relation to this Order should be constituted a separate drainage district for the purposes of Part II. of the Land Drainage Act 1861 and such incidental consequential or supplemental provisions as are hereinafter contained are necessary or proper for the purposes of this Order:

And whereas such area includes the whole or part of certain areas within the jurisdiction of the drainage authorities specified in the First Schedule to this Order and such authorities have consented to the inclusion of their respective areas or parts thereof in the drainage district to be constituted by this Order.

Now therefore the Ministry in pursuance of the powers vested in them by the Land Drainage Acts 1861 and 1918 do hereby order as follows:—

Constitu-
tion of
district.

1. The area coloured on the said map is hereby constituted a separate drainage district for the purposes of Part II. of the Land Drainage Act 1861 and such area shall be known as the Ouse Drainage District.

Division of
district and
revision of
boundaries.

2.—(1) The Ouse Drainage District shall be divided into the areas enumerated in Part I. of the Second Schedule to this Order and delimited on the said map. The areas enumerated in Part III. of the said schedule shall be divided into sub-areas as therein indicated and as delimited on the said map.

(2) The boundaries of the Ouse Drainage District and of any of the said areas or sub-areas and the proportions in which they are severally to be rated as hereinafter provided may be varied at any time by an Order made in accordance with the provisions of the Land Drainage Acts 1861 and 1918 on an application made by—

(a) the proprietors of one-tenth of the lands proposed to be added to or excluded from the Ouse Drainage District or

to be added to or excluded from any of the said areas or sub-areas as the case may be or of the lands comprised in any area or sub-area the rating of which it is proposed to vary ; or

(b) the Ouse Drainage Board ; or

(c) the council of any administrative county or county borough in which any part of the land proposed to be affected by the Order is situate.

(3) Any Order so made may contain any incidental consequential or supplemental provisions which appear to be necessary or proper for the purposes of the Order and in particular may provide for an alteration of any electoral district or of the number of members to be elected for any electoral district which appears necessary in consequence of any alteration of any of the said areas or sub-areas.

3.—(1) The drainage board for the Ouse Drainage District shall be known as the Ouse Drainage Board and shall (from and after the day on which the term of office of the members of the first Ouse Drainage Board shall cease as hereinafter provided) be composed of 42 members of whom two shall be appointed by the Ministry one shall be appointed by the council of each of the administrative counties of Norfolk West Suffolk the Isle of Ely Cambridge Huntingdon Bedford Northampton and Buckingham and one by the King's Lynn Conservancy Board. The remaining members shall be elected by the electors of the following electoral districts in the respective numbers shown below :—

Composition
of Ouse
Drainage
Board and
elections.

Electoral district consisting of—	Number of Members.
Sub-areas A 1 A 2 and A 3	3
Sub-areas A 4 A 5 A 6 and A 7	3
Sub-areas A 8 A 9 and A 10	4
Sub-areas B 1 and B 2	1
Area C	5
Sub-area D 1	4
Sub-areas D 2 D 3 and D 4	2
Areas E and F	2
Sub-area G 1	2
Sub-area G 2	1
Area H	2
Sub-areas K 1 K 2 and K 3	2

Provided that the Ministry may at any time after consultation with the Ouse Drainage Board by Order vary the number of members constituting the Ouse Drainage Board by the addition of a member to be appointed by any local authority of a district for the purposes of the Public Health Act 1875 or any highway authority which may

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A.D. 1920. in pursuance of section 5 of the Land Drainage Act 1918 contribute or undertake to contribute to the expenses of the execution or maintenance by the Ouse Drainage Board of any drainage works or by any two or more of such authorities.

(2) The electors for each such electoral district shall be the owners and occupiers of all lands situate in such district. Provided that if before the date of the election any rate has been made by the Ouse Drainage Board in respect of any land the owner or occupier of such land shall not be entitled to vote unless he has paid the whole of the rates due from him and demanded not less than one calendar month before the date of the election. For the purpose of any election the owner or occupier of any land shall be deemed to be the person shown as such in the poor rate in force for the parish in which the land is situate on the first day of July next preceding the election.

(3) It shall be the duty of the Ouse Drainage Board to prepare a register of electors as soon as practicable after the Ouse Drainage Board comes into office and thereafter to maintain the same. Objections to such register shall be heard and determined by the Ouse Drainage Board in accordance with regulations to be made by them for the purpose and their decision on any such objection shall be final.

(4) No person shall after the confirmation of this Order be appointed or elected as a member of the Ouse Drainage Board or act as such unless he is the proprietor of at least ten acres of land rateable by the Ouse Drainage Board and situate in the county or electoral district for which he is appointed or elected or the occupying tenant (yearly or otherwise) of at least twenty acres of such land or is a member officer or servant of any body corporate which is the proprietor of not less than five acres or the occupier of not less than twenty acres of such land. Provided that such member is nominated by such body corporate as representing their interest in such land or that such officer or servant is charged with the management of such land on behalf of such body corporate and unless such proprietor or tenant or such body corporate as the case may be has paid all rates due from him or them to the Ouse Drainage Board. Provided that this provision shall not apply to any member appointed by the Ministry or the King's Lynn Conservancy Board or to any of the persons designated by name in Article 4 of this Order.

(5) Elections shall be held by the Ouse Drainage Board in accordance with the rules set out in the Fourth Schedule to this Order on such day or days in October as the Ouse Drainage Board may appoint. The first election shall be held in the year following that in which the Ouse Drainage Board comes into office and subsequent elections shall be held in every third year subsequent to the first election.

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(6) The necessary expenses of elections and of preparing and maintaining such register shall be defrayed as general administrative expenses of the Ouse Drainage Board. A.D. 1920.

4. The following persons shall be members of the first Ouse Drainage Board:—

Members of
the first Ouse
Drainage
Board.

Noah James Barker;
 Charles Bidwell;
 Robert Bilsland;
 Frederick Clarke;
 John May Coleman;
 William Cranfield;
 The Right Honourable William Henry Baron De Ramsey;
 Albert George Edwards;
 William Ell;
 Harry Gleaves Few;
 Fred Hiam;
 Herbert King;
 Hugh Kerkham;
 John Matthew Knapp;
 William Lister;
 James Little Luddington;
 William Ernest Mann;
 Thomas Collier Hipwell;
 Horace Joseph Martin;
 Sir Douglas Newton K.B.E.;
 Thomas Archibald Wanless Nicholson;
 Joseph Pyke Pentelow;
 Edward Roger Murray Pratt;
 Arthur Scott;
 Richard Sears;
 Robert Stephenson;
 Hugh Wooll West;
 Henry Thomas Franklin Weston;
 Joseph Evans Whiting;
 Hugh Abinger Whittome;
 John Newcome Wright;

and eleven persons to be appointed within three months after the confirmation of this Order two by the Ministry one by the council of each of the following administrative counties namely Norfolk West Suffolk the Isle of Ely Cambridge Huntingdon Bedford Buckingham and Northampton and one by the King's Lynn Conservancy Board:

Provided that if the Ministry or the councils of the said administrative counties or any of them or the King's Lynn Conservancy Board

A.D. 1920. do not make such appointments within the time hereinbefore appointed the remaining members shall act as if such appointments had been made.

Term of
office &c.

5.—(1) The term of office of a member of the Ouse Drainage Board shall be three years from the first day of November following the day on which he is elected or appointed as the case may be unless before the expiration of such period he commits an act of bankruptcy or resigns or dies or his appointment is revoked by the Ministry or body by which he was appointed and the provisions of section 68 of the Land Drainage Act 1861 (Regulations as to Drainage Boards) with respect to vacating office shall not apply. Provided that in the case of the first members the term of office shall instead of three years be the period ending on the first day of November in the year following that in which the Ouse Drainage Board comes into office.

(2) Every member of the Ouse Drainage Board shall on the expiration of his term of office be eligible for re-appointment or re-election and if at the time when the appointment of members ought to take place the place of any retiring member is not filled up the retiring member whose place is not filled up shall continue in office until his successor is appointed.

(3) Any casual vacancy occurring in the Ouse Drainage Board may be filled up by the body by which the vacating member was appointed or in the case of an elected member by the Ouse Drainage Board but any person so appointed shall retain his office so long only as the vacating member would have retained the same if no vacancy had occurred.

(4) During any vacancy in the Ouse Drainage Board the remaining members shall act as if such vacancy did not exist.

(5) All acts done by any meeting of the Ouse Drainage Board or of any committee or sub-committee thereof or by any person acting as a member of the Ouse Drainage Board or of any such committee or sub-committee shall notwithstanding any defect in the appointment or election of the Ouse Drainage Board or of such committee or sub-committee or person acting as aforesaid be as valid as if the Ouse Drainage Board and every such committee or sub-committee had been duly appointed or elected and as if every such person had been duly appointed or elected a member of the Ouse Drainage Board or of any such committee or sub-committee as the case may be.

Proceedings
&c.

6. The following modifications of Part II. of the schedule to the Land Drainage Act 1861 shall have effect in the application of the said schedule to the proceedings of the Ouse Drainage Board:—

(a) The number of members required to be present for the purposes of paragraph 1 (a) thereof shall be nine:

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(b) The provisions of paragraph 1 (b) thereof shall apply only to orders involving an expenditure of more than one thousand pounds: A.D. 1920.

(c) The following shall be substituted for paragraph 2 thereof:—

“The board shall as soon as they conveniently can appoint a chairman who may be salaried if the board think fit and who need not be one of their number. The term of office of such chairman shall continue until the first meeting of the board after the election next following his appointment and at each such meeting the same provisions shall from time to time apply”:

(d) A chairman appointed in pursuance of paragraph 3 thereof need not be a member of the board:

(e) If the chairman is not a member of the board he shall have a casting vote in case of an equality of votes at any meeting but otherwise shall not vote:

(f) The following shall be substituted for paragraph 6 thereof:—

“The board may appoint such committees or sub-committees as they think fit which may consist wholly or partly of members of the board but all acts of any committee or sub-committee which does not consist wholly of members of the board shall be subject to the approval of the board. Any such committee or sub-committee shall in the performance of the duties assigned to it conform to any regulations that may be made by the board.”

7. The day and place of the first meeting of the Ouse Drainage Board shall be fixed by the Ministry and the Ouse Drainage Board shall come into office on the day so fixed. First meeting.

Notice of such meeting shall be sent by the Ministry to each member of the Ouse Drainage Board by post at least 14 days before the day of the meeting.

8.—(1) Notwithstanding anything contained in the Land Drainage Acts 1861 and 1918 or this Order the powers hitherto exercisable by any of the drainage authorities mentioned in Part I. of the First Schedule to this Order or by any other authority (not being mentioned in Part II. of the said schedule) having powers or duties in relation to the drainage of any of the said lands shall not cease except so far as the same are exercisable in relation to any portion of the channels included in the Third Schedule to this Order or of the banks thereof and the Ouse Drainage Board shall not except with the consent of the authority concerned within the district of any such authority Saving of certain powers of existing drainage authorities.

A.D. 1920. — exercise any power otherwise than in relation to such channels and banks or in the discharge of an obligation imposed by the provisions of any local Act as altered by this Order :

Provided that no structure appliance or channel for the discharge of water from the drainage area of any such authority immediately into any such channel as aforesaid or over or through or under any such bank shall be constructed by such authority or altered otherwise than by way of maintenance of existing works except upon such terms as may be agreed between the Ouse Drainage Board and the drainage authority concerned or in default of agreement be determined by the Ministry.

(2) The construction of new works or improvements of existing works in or on any channel or bank of such part of the River Ouse as lies below Denver Sluice or for the improvement of the outfall of that river shall not be executed by the Ouse Drainage Board except with the consent of a majority of the whole of the Ouse Drainage Board.

As to new
works or im-
provements
of existing
works.

9.—(1) With respect to new works or improvements of existing works the following provisions shall apply to—

- (a) the proprietors of one-tenth of the lands in any area or sub-area upon which a rate will be required to be levied in respect of any new work or improvement of existing works ; and
- (b) the council of any administrative county or county borough in which any part of any such area or sub-area is situate.

(2) Such proprietors or council may—

- (a) within the period of two months specified in section 29 of the Land Drainage Act 1861 object to any new work or improvement of existing works specified in that section as amended by this Order of which notice has been given under that section ;
- (b) within such period apply that the proportions in which the cost of executing and maintaining such new work or improvement shall be borne by any such area or sub-area shall be revised by the Ministry ;
- (c) at any time require the Ouse Drainage Board to carry out any new work or improvement subject to the provisions of the Land Drainage Acts 1861 and 1918.

(3) Such objection application or requirement shall be conveyed to the Ouse Drainage Board by notice in writing which shall specify the new work or improvement objected to or required or in respect of which such application is made.

(4) After receipt of any such notice of objection or of application duly given the Ouse Drainage Board shall not proceed with any such new work or improvement specified therein except with the consent of the Ministry which shall in the case of an application under subsection (2) (b) of this Article before giving its consent (notwithstanding anything contained in Article 11 or in the Second Schedule of this Order) direct in what proportions the cost of such new work or improvement shall be borne. A.D. 1920.

(5) After receipt of any such notice of requirement duly given the Ouse Drainage Board shall assent thereto within three months of such receipt or shall within such time refer the matter to the Ministry which may thereupon direct the Ouse Drainage Board to carry out the new works or improvements specified in such notice or any part thereof within such time and subject to such directions as to the proportions in which the cost thereof shall be borne as the Ministry may think fit and if the Ouse Drainage Board shall fail to carry out such new works or improvements accordingly the Ministry may in order to the fulfilment thereof exercise or authorise the exercise of the powers of the Ouse Drainage Board in accordance with the provisions of the Land Drainage Act 1918.

(6) The decision of the Ministry on any of the matters referred to it under the provisions of this Article shall be final.

(7) For the purposes of this Order section 29 of the Land Drainage Act 1861 as amended by the Land Drainage Act 1918 shall be read as if for the words from "one thousand pounds" to "whichever amount is the greater" were substituted the words "ten thousand pounds or an amount equal to one pound for each acre in the area within which a rate will require to be levied to meet the expenditure involved whichever amount is the less."

10.—(1) On and after the day on which the Ouse Drainage Board comes into office as hereinbefore provided all property vested in or held by or upon trust for or on behalf of any of the authorities mentioned in Part II. of the First Schedule to this Order shall pass to and vest in the Ouse Drainage Board subject to all debts and liabilities affecting such property as aforesaid and shall be held by the Ouse Drainage Board for the same estate interest and purposes and subject to the same covenants conditions and restrictions for and subject to which that property would have been held if this Order had not been made and in any case where out of the income derived from any such property any annual payment is at the said day being made by any of the said authorities for the execution or maintenance of any work the duty of executing or maintaining which is transferred to the Ouse Drainage Board in consequence of this Order an amount

Transfer of
property and
liabilities.

A.D. 1920. — equivalent to such annual payment shall continue to be paid out of such income. Provided however that save as in this Order provided the property in the building and premises known as the Fen Office and situate at Ely and in any deeds maps books papers or other chattels contained in such building on the said day shall not pass to the Ouse Drainage Board save in so far as the possession of any such deed map book paper or other chattel is necessary to the Ouse Drainage Board for the execution of its duties. Any difference arising on the question of such necessity shall be referred to the Ministry whose decision shall be final.

(2) The provisions of any Local Act under which any property was vested in or conferred on any of the said authorities or any trustees on behalf of any of the said authorities or by which any right power or obligation was conferred or imposed upon any of the said authorities shall be altered by the substitution therein of the name of the Ouse Drainage Board for the name of such authority. Provided that nothing in this provision shall be deemed to confer on the Ouse Drainage Board any power to levy any rate otherwise than under and by virtue of the remaining provisions of this Order or any power to carry out any works authorised by the Ouse Provisional Order 1915 to be carried out subject to the approval of the Ministry.

(3) Nothing in this Order shall prejudicially affect any securities granted before the making of this Order on the credit of any rate or tax made by any of the said authorities or of any property transferred by this Order to the Ouse Drainage Board. All debts and liabilities charged on any such rate or tax shall become charged on the rates levied by the Ouse Drainage Board in such proportions as the Ouse Drainage Board may determine but as if they had been incurred by the Ouse Drainage Board for the same purposes for which they were in fact severally incurred by the said authorities. All debts and liabilities secured on any property of any of the said authorities shall continue to be secured on the same property and shall be discharged by the Ouse Drainage Board accordingly. All other debts and liabilities and all duties and obligations of the said authorities shall become debts liabilities duties and obligations of the Ouse Drainage Board.

(4)—(a) Every officer or servant of any of the authorities referred to in Part II. of the First Schedule to this Order who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by the abolition of his office or employment or by diminution or loss of fees or salary shall be entitled to have compensation for such pecuniary loss paid to him by the Ouse Drainage Board.

(b) Any such officer or servant whose services are dispensed with or whose salary is reduced by the Ouse Drainage Board within two years

from the date on which the Ouse Drainage Board comes into office because his services are not required or his duties are diminished in consequence of this Order and not on account of misconduct or inefficiency or whose office or employment is terminated by virtue of this Order shall be deemed to have suffered direct pecuniary loss in consequence of this Order. A.D. 1920.

(c) In determining the amount of compensation payable to any such officer or servant regard shall be had to the conditions and other circumstances required by subsection (1) of section 120 of the Local Government Act 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned. Provided that the expression in that subsection "the Acts and rules relating to Her Majesty's Civil Service" shall mean the Acts and rules relating to His Majesty's Civil Service which were in operation at the date of the passing of the Local Government Act 1888.

(d) No person shall be entitled to receive both compensation for any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and a superannuation or retiring allowance in respect of the same period of service and the same pecuniary loss.

(5)—(a) Nothing in this Order shall be deemed to effect any transfer to the Ouse Drainage Board of any property vested in any navigation authority for navigation purposes or of any rights powers duties or obligations conferred or imposed upon any navigation authority as such.

(b) The Ministry after consultation with the Ministry of Transport by this Order authorises the Ouse Drainage Board and any navigation authority with a view to improving the drainage of the district under the jurisdiction of the Ouse Drainage Board from time to time to enter into arrangements for—

(i) the transfer to the Ouse Drainage Board of the whole or any part of the undertaking powers duties and obligations of such navigation authority and also of all or any part of the property vested in such authority or authorities for the purpose of navigation; or

(ii) the alteration or management of the works or undertaking of the navigation authority or any part thereof; or

(iii) payment by any party to any such arrangement to the other party as the consideration for any matter or subject to which the arrangement relates:

Provided always that no such arrangements shall be carried into effect unless and until approved by the Ministry and the Ministry of Transport:

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Provided also that nothing in this Article shall authorise any arrangement being entered into for any of the aforesaid purposes with reference to any part of the River Ouse seaward of the northernmost end of the Eau Brink Cut :

Provided also that any such arrangement for the transfer of any part of the undertaking of the Bedford Level Corporation as a Navigation Authority shall provide for the transfer to the Ouse Drainage Board of the premises known as the Fen Office situate at Ely and of any deeds maps books papers or other chattels in such building and that such deeds maps books papers or other chattels shall be kept together for ever by the Ouse Drainage Board either in the said building or at the principal office of the Ouse Drainage Board or by such other person or body or at such museum depository or other place as the Minister may approve :

Provided also that nothing in this Order shall take away lessen or prejudice any of the rights or powers of the Conservators of the River Cam in the County of Cambridge appointed and established under the River Cam Navigation Act 1851 and that no arrangement entered into under the provisions of this Article shall operate so as to reduce or affect the level of the water in any portion of the River Cam which is under the jurisdiction of the Conservators of the River Cam and the South Level Commissioners or either of them or to interfere with the River Cam or the supply of water to that river without the consent of the Mayor Aldermen and Burgesses of the Borough of Cambridge under their corporate seal Any question arising between the Ouse Drainage Board and the said Mayor Aldermen and Burgesses with regard to any such arrangement as aforesaid shall be determined by the arbitration of an engineer to be appointed failing agreement by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

Rating.

11. Save in so far as they are defrayed by means of property transferred under the preceding provisions of this Order and subject to the remaining provisions of this Order the expenses of the Ouse Drainage Board shall be defrayed in accordance with the following provisions :—

- (i) Save as hereafter in this Article provided the expenses incurred by the Ouse Drainage Board in the execution and maintenance of works on the sections of the said channels and banks referred to in column 1 of Part II. of the Second Schedule (other than works to which paragraph (ii) of this Article applies) shall be defrayed out of rates levied within the areas or sub-areas and in the proportions set out in

columns 2 and 3 of the said Part II. or out of reserve funds to be formed by means of rates so levied : A.D. 1920.

- (ii) Any expenses incurred by the Ouse Drainage Board in the execution or maintenance of works for the exclusive benefit of any lands within any area or sub-area shall be declared by the Ouse Drainage Board to have been incurred for the exclusive benefit of such lands and any expenses so declared shall be defrayed wholly out of rates levied in respect of such lands :
- (iii) The Ouse Drainage Board shall allocate to works in each of the said sections and to any works the expenses of which are declared to have been incurred for the exclusive benefit of any lands as aforesaid such part of their administrative and general expenses (other than expenses of the execution or maintenance of works) as they shall from time to time think reasonable and any expenses so allocated shall for the purposes of this section be deemed to be expenses of the execution and maintenance of the works to which the expenses are so allocated. The administrative and general expenses of the Ouse Drainage Board (other than expenses of the execution or maintenance of works or expenses allocated as such) shall be defrayed out of rates levied equally within the whole district :
- (iv) Any expenses incurred by the Ouse Drainage Board within the district of any drainage authority and in exercise of any powers which under this Order are exerciseable only with the consent of such drainage authority shall be defrayed wholly out of rates levied within the district of such drainage authority :
- (v) If the Ouse Drainage Board shall at any time levy any rate on the basis of the annual value of the lands liable to be rated Then —
 - (a) lands used only as a railway constructed under the powers of any Act of Parliament for public conveyance shall not be assessed to such rate on the basis of a higher annual value than that of the lands immediately adjacent thereto ;
 - (b) buildings and other hereditaments not being agricultural land or land used only as aforesaid which are situate in any of the said areas or sub-areas shall be rated at one-third only of the rate in the pound at which the remainder of the lands situate in such area or sub-area are rated in such rate :

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(vi) Nothing in this Order shall prevent the Ouse Drainage Board from levying any rate on the basis of annual value in respect of buildings and other hereditaments not being agricultural land. Provided that if agricultural land is rated on an acreage basis in such rate the amount of the rate in the pound levied on the annual value of buildings and other hereditaments not being agricultural land or land used only as aforesaid shall not exceed two-ninths of the amount of the rate per acre levied on agricultural land or land used only as aforesaid in the same area or sub-area as the case may be:

(vii) For the purposes of the execution or maintenance of works in sections 1 (a) 1 (b) 1 (c) 1 (d) 2 3 and 4 taken together the Ouse Drainage Board shall not borrow more than the sum of two hundred thousand pounds in the period of five years after the day on which they come into office nor more than the sum of one hundred thousand pounds in any one year after the expiration of that period and shall not for the purpose of meeting expenses other than interest on and repayment of loans levy by means of rates more than one-tenth of such sums respectively:

(viii) If any urban authority shall at any time contribute or undertake to contribute to the expenses of the execution or maintenance of the works of the Ouse Drainage Board in virtue of the provisions of section 5 of the Land Drainage Act 1918 the amount of the contribution to be made by such authority in respect of buildings and other hereditaments not being agricultural land shall be equal acre for acre to the amount levied from time to time by the Ouse Drainage Board in respect of agricultural land adjoining or situate within the borough or urban district concerned and so long as such contribution or undertaking shall continue the Ouse Drainage Board shall not levy any drainage rate in respect of such buildings or other hereditaments situate within such borough or urban district and it shall be lawful for such urban authority from time to time to levy a rate or rates exclusively upon such buildings and hereditaments other than agricultural land for the purpose of providing funds for the payment of such contribution as aforesaid:

(ix) If a parish council or parish meeting shall at any time undertake to collect on behalf of the Ouse Drainage Board all rates leviable by the Ouse Drainage Board upon hereditaments situate within any village site then so long as such

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undertaking shall continue the amount of rates assessed by the Ouse Drainage Board on buildings and other hereditaments not being agricultural land within such village site shall be equal acre for acre to the amount levied from time to time by the Ouse Drainage Board in respect of agricultural land situate within or adjoining such village site: A.D. 1920

For the purposes of this provision any village site shall on the application of the parish council or parish meeting concerned be demarcated by the Ouse Drainage Board. If the parish council or parish meeting shall not be satisfied with such demarcation they shall be entitled within thirty days of receiving notice thereof to appeal to the Ministry whose decision upon such demarcation shall be final.

Nothing in this Order shall affect the right of the owner and occupier of any lands to appeal to quarter sessions against the rating of such lands on any grounds whatsoever.

12.--(1) Save as hereinafter provided the Ouse Drainage Board shall in the management and control of the structure known as the Seven Holes Sluice at Earith conform to the following regulations:-- Old Bedford
River and
works
thereon.

- (a) During the months of April to October inclusive in any year the sluices in the said structure shall commence to be drawn when the water on the upper side of the said structure shall have reached within two inches of the drawing-mark and shall be fully drawn when the water shall have reached the drawing-mark:
- (b) During the months of November to March inclusive in any year the said sluices shall commence to be drawn when the water shall have reached within two inches of a mark placed two feet below the drawing-mark and shall be fully drawn when the water shall have reached the said mark placed two feet below the drawing-mark:
- (c) The said sluices shall not commence to be closed until the water on the upper side of the said structure has fallen below the drawing-mark or the said mark placed two feet below the drawing-mark as the case may be and shall not be fully closed until it has fallen three inches below the drawing-mark or below the said mark placed two feet below the drawing-mark as the case may be:
- (d) The drawing-mark hereinbefore referred to is a mark inscribed on a stone built into the south face of the western

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abutment of the said structure with an inscription as follows:—

74 feet 6 inches

Level of the Hundred-

Feet washes above

Sutton Gault

1861

and its level is 13·90 feet above Ordnance Datum.

(2) The Ouse Drainage Board shall not vary the said regulations and shall not execute any work of enlargement or other alteration upon the said structure or upon the Welmore Lake Sluice or remove any portion of either of them or execute any works which will have the effect of raising the tidal water at Earith unless they shall have previously given notice of the proposed variation or work or of the proposed removal to the Hundred-Feet Wash Commissioners. If on receipt of such notice the said commissioners are of opinion that the carrying out of the proposals contained in such notice or of any part of them would injuriously affect any of the lands situate within the Hundred-Feet Washes or any of the works of the said commissioners and give notice to that effect requiring the Ouse Drainage Board not to proceed with such proposals or with any part of them then the Ouse Drainage Board shall not proceed with such proposals or with that part of such proposals to which the notice given by the said commissioners relates except with the consent of the said commissioners or under the authority of an award made in the manner provided by this Article and subject to the terms and conditions (if any) specified in the award which conditions may include provision for the reapportionment of the expenses incurred by the Ouse Drainage Board on the execution and maintenance of works in section 2 described in column 1 of Part II. of the Second Schedule to this Order and any expenses allocated to such works. If such provision is made in the award the Ministry shall forthwith prepare a draft Order in accordance with the Land Drainage Acts 1861 and 1918 amending Part II. of the Second Schedule accordingly:

Provided that if any member of the Ouse Drainage Board shall after one month's notice given by him to the Ouse Drainage Board propose at any meeting thereof that such regulations shall be varied or that any such work or removal shall be carried out and if at least ten members elected in respect of any part of area A or appointed by the council of any of the administrative counties of Huntingdon Bedford Northampton and Buckingham shall vote at such meeting in favour of such proposal, then unless the Ouse Drainage Board approve

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such proposal they shall forthwith refer the matter to the Ministry and shall act in accordance with their directions. A.D. 1920.

(3) Any difference arising between the Ouse Drainage Board and the said commissioners under paragraph 2 of this Article shall be referred to an arbitrator to be appointed unless otherwise agreed by the President of the Institution of Civil Engineers on the application of either party after notice thereof to the other.

13.—(1) Nothing in this Order shall take away lessen prejudice or interfere with any of the rights or powers of the King's Lynn Conservancy Board as the port and harbour authority and the local lighthouse authority of and for the port of King's Lynn. For protection of King's Lynn Conservancy Board.

(2) The Ouse Drainage Board shall before the execution of any work of clearing deepening or widening that part of the channel of the River Ouse which lies on the seaward side of an imaginary line drawn across the harbour representing the northern end of the Eau Brink Cut give notice of the proposed work and the details thereof to the said Conservancy Board and if that board is of opinion that any proposed works specified in any such notice would injuriously affect the harbour moorings or buoys belonging to the Conservancy Board or the navigation of the harbour or the quays ships' berths or training jetties belonging to or under the management of the Conservancy Board or the channel on the seaward side of such imaginary line and shall give notice to that effect requiring the Ouse Drainage Board not to proceed with the said work in any such case the Ouse Drainage Board on receipt of the notice shall not proceed with the said work except with the consent of the Conservancy Board or under the authority of an award made in the manner provided by this Article and subject to the terms and conditions (if any) specified in the award.

(3) Any difference arising between the Ouse Drainage Board and the Conservancy Board under paragraph 2 of this Article shall be referred to an arbitrator to be appointed unless otherwise agreed by the President of the Institution of Civil Engineers on the application of either party after notice thereof to the other.

14. Notwithstanding anything contained in this Order the following provisions for the protection and benefit of the mayor aldermen and burgesses of the borough of Bedford (in this Article referred to as "the corporation" and "the borough" respectively) shall unless otherwise agreed in writing between the Ouse Drainage Board and the corporation apply and have effect (that is to say):— For protection of Bedford Corporation.

(1) The Ouse Drainage Board shall not—

(a) reduce the height of any of the existing weirs or of the existing spillway hereinafter specified below the level hereinafter stated in respect of such weir or spillway;

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- (b) lower the existing heads of water at any of those weirs or spillway ;
- (c) remove any such weir or spillway ;
- (d) carry out any work or operation which would have the effect of lowering the top water level of the river opposite the old waterworks pumping station at Clapham Road Bedford below the level of 97·29 above Ordnance datum

unless they shall have previously given notice of the proposed lowering or removal work or operation to the town clerk of the borough of Bedford.

(2) If upon receipt of such notice the corporation are of opinion that the carrying out of the proposals contained in such notice or of any part of them would injuriously affect the supply of water available for the waterworks of the borough and give notice to that effect requiring the Ouse Drainage Board not to proceed with such proposals or with any part of them then the Ouse Drainage Board shall not proceed with such proposals or with that part of such proposals to which the notice given by the corporation relates except with the consent of the corporation or unless it is determined by arbitration in the manner provided by this article that the said water supply will not be so injuriously affected and then only subject to the terms and conditions (if any) specified in the award of the arbitrator.

(3) Any difference arising between the Ouse Drainage Board and the corporation under paragraph (2) of this Article as to whether the said water supply will be so injuriously affected shall be referred to an arbitrator to be appointed unless otherwise agreed by the President of the Institution of Civil Engineers on the application of either party after notice thereof to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any arbitration under this Article.

(4) The weirs spillway and levels referred to in this Article are as follows:—

Bromham Weir	-	-	96·94 feet above Ordnance datum.
Bromham Mill Spillway	-	-	97·24 feet above Ordnance datum.
Oakley Weir	-	-	103·00 feet above Ordnance datum.
Milton Ernest Weir	-	-	115·83 feet above Ordnance datum.
Stoke Mill Weir	-	-	127·36 feet above Ordnance datum.
Odoll Mill Weir (No. 1)	-	-	132·88 feet above Ordnance datum.
Odoll Mill Weir (No. 2)	-	-	133·08 feet above Ordnance datum.
Odoll Mill Weir (No. 3)	-	-	133·84 feet above Ordnance datum.
Harold Mill Weir (No. 1)	-	-	137·90 feet above Ordnance datum.
Harold Mill Weir (No. 2)	-	-	137·75 feet above Ordnance datum.

(5) If in consequence of any works or operations of the Board the supply of water obtained or obtainable from any wells or other works of the corporation is diminished the Ouse Drainage Board shall consent in principle to the taking of water from the River Ouse by the corporation for the purpose of making good the amount of water of which they may be deprived as aforesaid and shall not oppose any application which may be made by the corporation for authority to take such water except as to the details thereof. Provided that before making any such application the corporation shall confer with the said drainage board as to the details of their proposals. A.D. 1920.

(6) If the corporation shall at any time contribute or undertake to contribute towards the expenses of the execution or maintenance of the works of the Ouse Drainage Board in virtue of the provisions of section 5 of the Land Drainage Act 1918 the total amount payable in respect of any buildings and other hereditaments including agricultural land situate within the borough the following provisions shall apply:—

(a) The amount of the contribution to be made by the corporation in respect of buildings and other hereditaments not being agricultural land shall be equal acre for acre to the amount of the contribution to be made by them in respect of agricultural land and the last-named amount shall not exceed acre for acre the amount levied from time to time by the Ouse Drainage Board in respect of agricultural land adjoining the borough; and

(b) so long as such contribution or undertaking shall continue the Ouse Drainage Board shall not levy any drainage rate upon any buildings and other hereditaments or upon any agricultural land situate within the borough.

15. Nothing in this Order shall be deemed to authorise the execution of any works on over or under tidal lands below high-water mark of ordinary spring tides or the using thereof except in accordance with such plans and sections and subject to such restrictions and regulations as previous to such works being commenced have been approved by the Board of Trade in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade. Works below high-water mark to be subject to approval of Board of Trade.

16. Nothing in this Order affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Ouse Drainage Board to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any lands hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown without the consent in writing of the Protection of Crown rights.

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A.D. 1920. Board of Trade or of the Commissioners of His Majesty's Woods and Forests in the case of tidal lands under their management first had and obtained for that purpose.

For protection of railways docks &c.

17.—(1) If any of the works authorised by the Ouse Provisional Order 1915 or any part of such works shall be undertaken at any time by the Ouse Drainage Board the provisions of Articles 13 and 14 of the said Order shall apply as if such works were being undertaken under the said Order and those provisions shall also apply to any work of clearing deepening or widening that part of the channel of the River Ouse which lies on the seaward side of an imaginary line drawn across the harbour representing the northern end of the Eau Brink Cut.

(2) Nothing in this Order shall take away lessen prejudice or interfere with any rights or powers conferred by any Act of Parliament on the King's Lynn Docks and Railway Company.

(3) Nothing in this Order shall take away lessen prejudice or interfere with any rights or powers possessed by the corporation of Godmanchester in connexion with any lock sluice staunch or other structure.

For further protection of railways.

18.—(1) No works shall be executed under the powers of this Order which will interfere with any railway or with the foundations or piers of any bridge forming part of such railway without the consent in writing of the owners thereof.

(2) Any difference arising between the Ouse Drainage Board and the owner of any railway or bridge under this Article shall unless otherwise agreed be referred to an arbitrator to be appointed unless otherwise agreed by the President of the Institution of Civil Engineers on the application of either party after notice thereof to the other.

Power to repay certain expenses incurred before the making of this Order.

19.—(1) The Ouse Drainage Board may repay to the owner or occupier of any land within the Ouse Drainage District or to any drainage authority within the said district or to the Ministry the amount of any expenditure which has been incurred by such owner or occupier or by such drainage authority or by the Ministry whether acting on their own behalf or on behalf of the Development Commissioners and for the repayment of which application is made within six months after the day on which the Ouse Drainage Board comes into office in respect of the execution since July 1st 1918 of any drainage works (being in all cases such works as the Ouse Drainage Board could themselves have executed if this Order had taken effect before that date) to the extent to which the Ouse Drainage Board shall consider the execution of such works to have been necessary and proper or so much of such expenditure as the Ouse Drainage Board shall consider to have been reasonably incurred.

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(2) Any sums repaid by the Ouse Drainage Board pursuant to this provision in respect of any works shall in all respects and for all purposes be deemed to be expenses incurred by the Ouse Drainage Board in the execution of such works under the powers vested in them by this Order and shall be raised by means of rates levied in accordance with the provisions of this Order. A.D. 1920.

(3) This provision shall not apply to any expenditure incurred by any drainage authority which has already been met by means of rates levied by such authority.

(4) Nothing in this Order shall prevent any of the authorities enumerated in Part I. of the First Schedule to this Order from raising by rates after the day on which the Ouse Drainage Board comes into office as hereinbefore provided any money required to meet expenditure incurred before such day in the exercise of powers or in the discharge of duties transferred to the Ouse Drainage Board by or in consequence of this Order save in so far as the amount of such expenditure shall have been repaid to such authority under this Article or prejudicially affect any security granted by any such authority on the credit of any rate leviable by them.

(5) The Ouse Drainage Board may if they think fit assume liability for the discharge of any debt incurred by any of the said authorities before such day in connexion with the exercise of any power or the discharge of any duty which is transferred to the Ouse Drainage Board by or in consequence of this Order Provided that the money required to discharge any such debt and to pay interest thereon shall be raised by means of rates levied upon lands which were liable to be rated for that purpose before the passing of this Order or out of the income of any property which may be transferred by such authority to the Ouse Drainage Board for that purpose.

20. The expenses of the Ministry and such expenses as shall be certified by the Ministry to have been reasonably incurred by the petitioners in relation to the making or confirmation of this Order shall be a first charge on the rates leviable within the Ouse Drainage District and be defrayed as administrative and general expenses of the Ouse Drainage Board. Expenses of Order.

21. In this Order—

Definitions.

- (a) the word "channel" includes any structure or appliance situate in a channel or in any part of the banks thereof as hereinafter defined for controlling or regulating the flow of water into in or out of the channel but does not

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include any structure appliance drain or cut vested in or belonging to any of the authorities referred to in Part I. of the First Schedule to this Order;

(b) the word "banks" means the banks forelands and embankments adjoining or confining any channel on either side and any soak-dykes thereto appurtenant except the barrier bank on the north-west side of the Old Bedford River and River Delph;

(c) the word "property" includes all lands tenements hereditaments bridges roads plant machinery money and securities for money deeds maps books papers chattels rights and titles and also all debts and statutory payments due or payable to any of the said authorities;

(d) other expressions have the same meanings as in the Land Drainage Acts 1861 and 1918 unless excluded by the subject or context or expressly varied by this Order.

Short title.

22. This Order may be cited as the Ouse Drainage Order 1920.

In witness whereof the Ministry have hereunto set their official seal this tenth day of December nineteen hundred and nineteen.



H. L. FRENCH
Assistant Secretary.

SCHEDULES.

A.D. 1920.

FIRST SCHEDULE.

DRAINAGE AUTHORITIES WHOLLY OR PARTLY WITHIN THE OUSE DRAINAGE DISTRICT.

PART I.

Internal Drainage Authorities.

- The Middle Level Drainage and Navigation Commissioners.
- The Nar Valley Drainage Commissioners.
- The Wormegay Polver Drainage Commissioners.
- The Marshland Smeeth and Fen Drainage Commissioners.
- The Outwell Stow Bardolph Wimbotsham and Downham Drainage Commissioners.
- The Downham Fen Drainage Commissioners.
- The Stoke Ferry Drainage Commissioners.
- The River Wissey Drainage Board.
- The Methwold and Feltwell Drainage Board.
- The Hilgay Great West Fen Drainage Commissioners.
- The Feltwell New Fen Drainage Commissioners.
- The Littleport and Downham Drainage Commissioners.
- The Grunty Fen Drainage Commissioners.
- The Feltwell Fen Second District Drainage Commissioners.
- The Lakenheath and Brandon Drainage Commissioners.
- The Burnt Fen Drainage Commissioners.
- The Mildenhall Fen Drainage Commissioners.
- The Soham or Middle Fen Drainage Commissioners.
- The Padnal and Waterden Fen Drainage Commissioners Upper Division and Lower Division.
- The Cawdle Fen Drainage Commissioners.
- The Thetford Fen Drainage Commissioners.
- The Burwell Fen Drainage and Navigation Commissioners.
- The Swaffham and Bottisham Drainage Commissioners.
- The Waterbeach Level Commissioners.
- The Cottenham Rampton and Willingham Drainage Commissioners.
- The Willingham (West) Fen Drainage Commissioners.
- The Over Fen District Drainage Board.
- The Haddenham Level Drainage Commissioners.
- The Sutton and Mepal Drainage Commissioners.
- The Manea and Welney Drainage Commissioners.

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- A.D. 1920. The Sutton and Manea Joint Committee.
The Magdalen Drainage Commissioners.
The Downham Market Wimbotsham Stow Market and Denver Drainage Commissioners.
The Stretham Common Drainage Commissioners.
The Upwell Outwell Denver and Welney Drainage Commissioners.
The Norfolk Court of Sewers.
The Hundred-Foot Wash Commissioners.
The Bluntisham Drainage Board.
The Warboys United Drainage Commissioners.
The Ramsey First (Hollow) District Drainage Commissioners.
The Ramsey Second (Stockington) District Drainage Commissioners.
The Ramsey Third (Bill) District Drainage Commissioners.
The Ramsey Fourth (Middlemoor) District Drainage Commissioners.
The Ramsey Fifth (Lodesend) District Drainage Commissioners.
The Ramsey New Fen Drainage Commissioners.
The Mereside and Ramsey Mere Drainage Commissioners.
The Broadalls Drainage Commissioners.
The Lotting Fen Drainage Commissioners.
The Woodwalton Drainage Board.
The Farcet Fen Drainage Commissioners.
The New Farcet Fen Drainage Trustees.
The Yaxley First District Drainage Commissioners.
The Yaxley Second District Drainage Commissioners.
The New Yaxley Fen Drainage Commissioners.
The Pidley and Somersham Fourth District Drainage Commissioners.
The Chatteris Fifth District Drainage Commissioners.
The Chatteris Curff District Drainage Commissioners.
The Westmoor and Beezlings (Chatteris and Doddington) Drainage Commissioners.
The Bensons and Noormoor Drainage Trustees.
The Benwick Second District Drainage Commissioners.
The Benwick Third District Drainage Commissioners.
The White Fen Drainage Commissioners.
The Doddington (or Ranson Moor) Drainage Commissioners.
The Glassmoor and Underwoods (Whittlesey) Drainage Commissioners.
The Whittlesey First District Drainage Commissioners.
The Whittlesey Second District Drainage Commissioners.
The Whittlesey Third District Drainage Commissioners.
The Whittlesey Fourth District Drainage Commissioners.
The Whittlesey Fifth District Drainage Commissioners.
The Kingsland Drainage Commissioners.
The Wimblington First District Drainage Commissioners.
The Wimblington Second District Drainage Commissioners.
The Wimblington Common Drainage Commissioners.

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The March First District Drainage Commissioners.
The March Second District Drainage Commissioners.
The March Third District Drainage Commissioners.
The March Fourth District Drainage Commissioners.
The March Fifth District Drainage Commissioners.
The March Sixth District Drainage Commissioners.
The Needham Burial and Birckbeck Drainage Commissioners.
The Ladus Fen Drainage Commissioners.
The Brampton Drainage Commissioners.
The Houghton and Wyton Drainage Commissioners.

PART II.

Main Channel and Outfall Authorities.

The Honourable Bedford Level Corporation.
The South Level Commissioners.
The Denver Sluice Commissioners.
The Ouse Outfall Board.
The Lower Ouse Drainage Board.
The Ouse Banks Commissioners.
The Ouse Banks First District Commissioners.
The Ouse Banks Second District Commissioners.
The Ouse Banks Third District Commissioners.
The Ouse Banks Fourth District Commissioners.
The Ouse Banks Fifth District Commissioners.
The Ouse Banks Sixth District Commissioners.

SECOND SCHEDULE.

PART I.

Denomination of Area.						How coloured on the Map.
1.						2.
A	-	-	-	-	-	Yellow.
B	-	-	-	-	-	Purple.
C	-	-	-	-	-	Light red.
D	-	-	-	-	-	Dark blue.
E	-	-	-	-	-	Orange.
F	-	-	-	-	-	Dark brown.
G	-	-	-	-	-	Light green.
H	-	-	-	-	-	Light brown.
K	-	-	-	-	-	Dark green.

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PART II.

Section of Works.	Areas and sub-areas rateable to expenses incurred on or allocated to work shown in Column 1.	Proportion in which lands in each area or sub- area are to be rated for such expenses.
1.	2.	3.
1a. In sub-area A 9 including Brownhill Staunch.	A 1 - - - - A 2 - - - - A 3 - - - - A 4 - - - - A 5 - - - - A 6 - - - - A 7 - - - - A 8 - - - - A 9 - - - -	$\frac{1}{4}$ rate. $\frac{1}{4}$ rate. $\frac{1}{2}$ rate. $\frac{3}{4}$ rate. $\frac{1}{2}$ rate. $\frac{1}{4}$ rate. $\frac{3}{4}$ rate. $\frac{3}{4}$ rate. Full rate.
1b. In sub-area A 4 - - -	A 1 - - - - A 2 - - - - A 3 - - - - A 4 - - - - A 5 - - - - A 6 - - - - A 7 - - - -	$\frac{1}{2}$ rate. $\frac{1}{4}$ rate. $\frac{3}{4}$ rate. Full rate. $\frac{3}{4}$ rate. $\frac{1}{2}$ rate. $\frac{3}{4}$ rate.
1c. In sub-area A 3 - - -	A 1 - - - - A 2 - - - - A 3 - - - -	$\frac{3}{4}$ rate. $\frac{1}{2}$ rate. Full rate.
1d. In sub-area A 1 - - -	A 1 - - - - A 2 - - - -	Full rate. $\frac{3}{4}$ rate.
1e. In sub-area A 8 - - -	A 8 - - - -	Full rate.
1f. In sub-area A 7 - - -	A 7 - - - - A 6 - - - -	Full rate. $\frac{3}{4}$ rate.
1g. In sub-area A 6 - - -	A 6 - - - -	Full rate.
1h. In sub-area A 5 - - -	A 5 - - - -	Full rate.
1k. In sub-area A 2 - - -	A 2 - - - -	Full rate.
		Subject to the provisions of Article 12 of the Order—
2. On the Old Bedford River from the Seven Holes Sluice to Welch's Dam (including the Seven Holes Sluice and the channel thence as far as the Black Sluice) and on the River Delph with Welmore Lake Sluice Section 3 being excluded.	A 1 - - - - A 2 - - - - A 3 - - - - A 4 - - - - A 5 - - - - A 6 - - - - A 7 - - - - A 8 - - - - A 9 - - - - A 10 - - - - F - - - -	$\frac{1}{64}$ rate. $\frac{1}{64}$ rate. $\frac{1}{32}$ rate. $\frac{3}{64}$ rate. $\frac{1}{32}$ rate. $\frac{1}{64}$ rate. $\frac{1}{32}$ rate. $\frac{3}{64}$ rate. $\frac{1}{16}$ rate. $\frac{1}{16}$ rate. Full rate.
3. On the Bedford Level Corpora- tion Barrier Bank on the River Ouse from Brownhill Staunch to Hermitage Sluice (both ex- clusive) and on the Hundred- Foot River from Hermitage Sluice (exclusive) to a line drawn across the same at the southern extremity of area E excluding any part of Section 6.	A 1 - - - - A 2 - - - - A 3 - - - - A 4 - - - - A 5 - - - - A 6 - - - - A 7 - - - - A 8 - - - - A 9 - - - - A 10 - - - - F - - - - G 1 - - - -	$\frac{5}{32}$ rate. $\frac{5}{32}$ rate. $\frac{5}{16}$ rate. $\frac{15}{32}$ rate. $\frac{5}{16}$ rate. $\frac{5}{32}$ rate. $\frac{5}{16}$ rate. $\frac{15}{32}$ rate. $\frac{5}{8}$ rate. $\frac{4}{8}$ rate. $\frac{1}{2}$ rate. $\frac{1}{2}$ rate.

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PART II.—continued.

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Section of Works. 1.	Areas and sub-areas rateable to expenses incurred on or allocated to work shown in Column 1. 2.	Proportion in which lands in each area or sub- area are to be rated for such expenses. 3.
4. On the Hundred-Foot River from a line drawn across the same at the southern extremity of area E to the junction of the Hundred-Foot and Ten Mile Rivers at Denver excluding any part of Sections 5 and 7.	A 1 - - - - A 2 - - - - A 3 - - - - A 4 - - - - A 5 - - - - A 6 - - - - A 7 - - - - A 8 - - - - A 9 - - - - A 10 - - - - D 1 - - - - E - - - - F - - - -	$\frac{3}{32}$ rate. $\frac{3}{32}$ rate. $\frac{3}{16}$ rate. $\frac{9}{32}$ rate. $\frac{3}{16}$ rate. $\frac{3}{32}$ rate. $\frac{3}{16}$ rate. $\frac{9}{32}$ rate. $\frac{2}{8}$ rate. $\frac{1}{8}$ rate. $\frac{3}{8}$ rate. Full rate. $\frac{1}{2}$ rate.
5. On the Barrier Bank along the west side of the Hundred-Foot River and River Ouse from Welmere Lake Sluice to Salter's Lode Sluice both exclusive.	B - - - - C - - - -	Full rate. Full rate.
6. On the Old West River from Hermitage Sluice to the junc- tion with the Cam both inclu- sive and on the Cam and its tributaries.	G 1 - - - - G 2 - - - -	Full rate. $\frac{1}{2}$ rate.
7. On the Ouse and the Ten Mile River from the junction of the Old West and Cam Rivers exclusive to Denver Sluice inclusive.	D 1 - - - - D 2 - - - - D 3 - - - - D 4 - - - - E - - - - G 1 - - - - G 2 - - - -	Full rate. $\frac{1}{4}$ rate. $\frac{1}{4}$ rate. $\frac{1}{4}$ rate. $\frac{1}{2}$ rate. $\frac{3}{4}$ rate. $\frac{3}{8}$ rate.
8. On the tributary rivers and channels falling into the Ouse and the Ten Mile River between the confluence of the Old West and Cam Rivers and Denver Sluice.	D 1 - - - - D 2 - - - - D 3 - - - - D 4 - - - -	Full rate. $\frac{1}{4}$ rate. $\frac{1}{4}$ rate. $\frac{1}{4}$ rate.
9. From Denver Sluice to the south end of Eau Brink Cut (both exclusive) and excluding any part of Section 5.	A 1 - - - - A 2 - - - - A 3 - - - - A 4 - - - - A 5 - - - - A 6 - - - - A 7 - - - - A 8 - - - - A 9 - - - - A 10 - - - - B - - - - D 1 - - - -	$\frac{1}{16}$ rate. $\frac{1}{16}$ rate. $\frac{1}{8}$ rate. $\frac{3}{16}$ rate. $\frac{1}{8}$ rate. $\frac{1}{16}$ rate. $\frac{1}{8}$ rate. $\frac{3}{16}$ rate. $\frac{1}{4}$ rate. $\frac{1}{4}$ rate. $\frac{3}{8}$ rate. $\frac{3}{8}$ rate.

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PART II.—continued.

Section of Works.	Areas and sub-areas rateable to expenses incurred on or allocated to work shown in Column 1.	Proportion in which lands in each area or sub- area are to be rated for such expenses.
1.	2.	3.
9. From Denver Sluice to the south end of Eau Brink Cut (both exclusive) and excluding any part of Section 5—continued.	D 2 D 3 D 4 E F G 1 G 2 H A 1 A 2 A 3 A 4 A 5 A 6 A 7 A 8 A 9 A 10 B C D 1 D 2 D 3 D 4 E F G 1 G 2 H K 1 A 1 A 2 A 3 A 4 A 5 A 6 A 7 A 8 A 9 A 10 B C D 1 D 2 D 3 D 4 E F G 1 G 2 H K 1 K 2 K 3	$\frac{3}{32}$ rate. $\frac{3}{32}$ rate. $\frac{3}{32}$ rate. $\frac{3}{4}$ rate. $\frac{1}{2}$ rate. $\frac{1}{4}$ rate. $\frac{1}{8}$ rate. Full rate. $\frac{1}{32}$ rate. $\frac{1}{32}$ rate. $\frac{1}{16}$ rate. $\frac{3}{32}$ rate. $\frac{1}{16}$ rate. $\frac{1}{32}$ rate. $\frac{1}{16}$ rate. $\frac{3}{32}$ rate. $\frac{1}{8}$ rate. $\frac{1}{8}$ rate. $\frac{2}{8}$ rate. Full rate. $\frac{3}{8}$ rate. $\frac{3}{32}$ rate. $\frac{3}{32}$ rate. $\frac{3}{32}$ rate. $\frac{3}{32}$ rate. $\frac{1}{2}$ rate. $\frac{1}{4}$ rate. $\frac{1}{8}$ rate. $\frac{1}{16}$ rate. $\frac{3}{4}$ rate. $\frac{1}{2}$ rate. $\frac{1}{32}$ rate. $\frac{1}{32}$ rate. $\frac{1}{16}$ rate. $\frac{3}{32}$ rate. $\frac{1}{16}$ rate. $\frac{1}{32}$ rate. $\frac{1}{16}$ rate. $\frac{3}{32}$ rate. $\frac{1}{8}$ rate. $\frac{1}{8}$ rate. $\frac{1}{4}$ rate. $\frac{3}{4}$ rate. $\frac{1}{4}$ rate. $\frac{1}{16}$ rate. $\frac{1}{16}$ rate. $\frac{1}{16}$ rate. $\frac{1}{4}$ rate. $\frac{1}{8}$ rate. $\frac{1}{8}$ rate. $\frac{1}{16}$ rate. $\frac{1}{2}$ rate. Full rate. $\frac{1}{2}$ rate. $\frac{1}{16}$ rate.
10. On the Eau Brink Cut		
11. Below Eau Brink Cut		

Area.	Sub-Areas.
1.	2.
A - - - - -	A 1. A 2. A 3. A 4. A 5. A 6. A 7. A 8. A 9. A 10.
B - - - - -	B 1. B 2.
G - - - - -	G 1. G 2.
D - - - - -	D 1. D 2. D 3. D 4.
K - - - - -	K 1. K 2. K 3.

THIRD SCHEDULE

CHANNELS REFERRED TO IN ARTICLE 8 (1).

- The River Ouse including the Old West and Ten Mile Rivers the Old Bedford River from the Seven Holes Sluice to Welch's Dam the River Delph and the Hundred-Foot or New Bedford River.
- The Rivers Cam Lark Little Ouse Wissey and Nar.
- The String River.
- The Lakenheath Lode and Eriswell Brook.
- The Lea Brook (Isleham).
- The Soham Lode or Clipsall River.
- The Reach Lode.
- The Wicken Lode the Monks Lode and the New River.
- The Burwell Lode and the catchwaters discharging into the same.
- The Swaffham Lode.
- The Bottisham Lode.
- The Waterbeach Lode.
- The Stretham Catchwater.
- The Cottenham Lode.
- The Willingham Lode.
- The Methwold Lode.

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FOURTH SCHEDULE.

RULES RELATING TO ELECTIONS OF MEMBERS OF THE
OUSE DRAINAGE BOARD.

Returning Officer.

1. The returning officer shall be the chairman of the Ouse Drainage Board.

It shall be his duty to make all arrangements for the election including arrangements (when a poll is necessary) for the poll and the counting of votes and to publish the result of the election in such manner as may be directed by the Ouse Drainage Board.

2. The returning officer may appoint by writing under his hand such deputies officers and clerks as he considers necessary for the conduct of the election.

Nomination.

3. Each candidate must be nominated in writing by at least two electors of the electoral district for which he stands and nomination papers must reach the returning officer not later than the 1st day of September in the year of each election.

4. No elector shall sign nominations for more candidates for his electoral district than there are vacancies to be filled for that district.

5. If on the second day of September in the year of election it is found with regard to any electoral district that no more candidates are nominated than there are vacancies to be filled the returning officer shall declare the candidates who stand nominated to be elected and shall publish the result of the election. If more candidates are nominated for any electoral district than there are vacancies the following regulations as to the poll shall be observed in such electoral district.

The Poll.

6. The poll shall remain open for five days and shall take place on such days in October and at such place or places as may be fixed by the Ouse Drainage Board.

7. The returning officer shall give public notice of the days and places fixed for the poll in accordance with rules to be made by the Ouse Drainage Board.

8. The returning officer shall appoint a presiding officer for each polling place and shall have general control over the arrangements for the conduct of the poll.

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9. Votes shall be given by means of voting papers and no elector shall be allowed to vote in any other way than is herein provided. Each voting paper shall be in the form (A) appended to this schedule and shall be numbered and shall have attached a counterfoil bearing the same number and the issue of a voting paper to each elector shall be recorded by entering the elector's name or number on the counterfoil of his voting paper and by placing a mark against his name in the register or a copy thereof. A.D. 1920.
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10. The returning officer shall cause to be sent to each elector not less than four days before the opening of the poll a voting paper accompanied by a letter of intimation in the form (B) appended to this schedule and by a stamped addressed envelope for the return of the voting paper to the appropriate presiding officer. No voting paper shall be valid unless it is filled up and signed by the elector and by a witness as indicated in the said form (A).

11. Each voting paper when received back from the elector shall be kept as may be directed by the returning officer until the poll begins.

12. With regard to incapacitated voters and to lost and spoiled voting papers the provisions of paragraphs 20 and 21 of Part II. of the Fifth Schedule to the Representation of the People Act 1918 shall apply.

13. When the poll begins the voting papers shall be opened and sorted at each polling place by the presiding officer in the presence of any candidate or the agent of any candidate who may attend but of no other person.

Any voting paper as to which any question may be raised by the presiding officer or by a candidate or the agent of a candidate shall be set apart and referred to the returning officer for his decision which decision shall be final.

14. No elector shall vote by proxy.

15. No elector shall have more than one vote at any election in any electoral district.

Counting.

16. After all the voting papers have been opened and sorted and any objections thereto have been decided the votes shall be counted under arrangements to be made by the returning officer who shall forthwith declare the candidate or candidates who have obtained the majority of the votes polled to be elected.

If an equality of votes is found to exist between any candidates and the addition of a vote would entitle any such candidate to be elected the chairman of the Ouse Drainage Board may give such

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17. In this schedule the term "electoral district" shall mean any portion of the Ouse Drainage District for which a member or members of the board are to be elected in pursuance of Article 3 (1) of this Order and the term "returning officer" shall include a deputy returning officer duly appointed.

Form A.

OUSE DRAINAGE BOARD VOTING PAPER.

Electoral District:

No. (Number of Elector on Register).

I give my vote as indicated below by a X.

Candidates.	Vote.

I declare that I have signed no other voting paper at this election for the above electoral district.

(Signed) A.B. (Elector.)

Address _____

Date _____

I declare that this voting paper the vote having been previously recorded thereon was signed in my presence by A.B. who is personally known to me on the _____ day of _____ 19 _____.

(Signed) C.D.

Designation _____

Address _____

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Form B.

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OUSE DRAINAGE BOARD.

Electoral District :

No. (Number of Elector on Register).

Candidate.	Proposer.	Seconder.

SIR,

The above-named persons are candidates for election to the Ouse Drainage Board. If you desire to vote at the election you should record your vote on the enclosed voting paper and having signed the paper in the presence of a witness (who will also sign as directed in the paper) you will return the voting paper by post in the enclosed stamped envelope.

The voting paper must reach the address shown on the envelope not later than 10 a.m. on the day of 19 .

Chairman O.D.B.

Returning Officer.

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FOR

WILLIAM RICHARD CODLING, Esq., C.B.E., M.V.O., the King's Printer of Acts of Parliament.

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